

MEMORANDUM OF AGREEMENT

This is a Memorandum of Agreement ("MOA") between Utica College ("Employer" or "College") and The Utica College Chapter of the American Association of University Professors ("AAUP-UC" or "Union") (collectively "parties").

The parties agree to amend the 2015-2020 Collective Bargaining Agreement as follows:

Article 8, Section 17(1)(B) Non-Tenure Eligible Faculty: Appointments and Reappointments shall be modified to include the language in bold:

Full-time non-tenure eligible faculty in their first position may be appointed for a term of 1, 2, or 3 years; subsequent appointments and reappointments shall be for at least a 3-year term. Subsequent appointments and reappointments may be made at the discretion of the Provost. Any Visiting Professor who receives one or more appointments that exceed two consecutive years shall become a non-tenure eligible faculty member.

Full-time non-tenure eligible faculty in their first position whose appointments begin in January may also be appointed for a term of 1.5 or 2.5 years.

Should the College convert a non-tenure eligible faculty position to a tenure track position, the affected non-tenure eligible faculty member may apply for the tenure track position. If the affected non-tenure eligible faculty member does not receive the tenure track position, the non-tenure eligible faculty member shall have the right to complete the term of the non-tenure eligible faculty member's appointment.

Article 8, Section 17(1)(E) Non-Tenure Eligible Faculty: Appointments and Reappointments shall be modified to include the language in bold:

The recommendation to the Provost and the President to renew or not to renew an appointment is the responsibility of the non-tenure eligible faculty member's School Dean. The renewal is subject to the approval of the Provost and the President. In cases where non-renewal is recommended, the affected faculty member shall have the right to present his or her case in person to the Provost and the President if he or she has provided in writing to the appropriate offices, no later than ten (10) working days after the notification of intention not to recommend renewal, notice of his or her intention to appeal the recommendation. The affected faculty member shall have the right to request the assistance of another bargaining unit member in presenting his or her case to the Provost and the President.

Notice of intention not to recommend renewal shall be in writing and shall precede any notice of renewal by 30 days and shall contain the reasons therefore. Notice of renewal or non-renewal shall be given in writing in accordance with the following time frames: (1) At least 90 days before the expiration of a one year appointment; (2) no later than 180 days before the end of a **one and a half** or two year appointment; or (3) at least twelve months before the expiration of an appointment after two or more years of service. Notice of renewal, non- renewal, or intention not to recommend renewal shall be copied to the AAUP-UC, in keeping with the time frames indicated above.

For: UTICA COLLEGE

By: Laura M. Casamento
Laura M. Casamento, Ed.D.
President, Utica College

For: AAUP-UC

By: _____
Adam Pack, Ph.D.
President, AAUP-UC

Date: Sept. 25, 2018 ..

Date: _____